

Beena Bisth vs Vinod Singla And Others on 20 February, 2009

Author: Sabina

Bench: Sabina

Crl. Revision No. 1333 of 2008

{1}

In the High Court of Punjab and Haryana at Chandigarh

Crl. Revision No. 1333 of 2008

Date of Decision: February 20, 2009

Beena Bisth

---Petitioner

versus

Vinod Singla and others

---Respondents

Coram: HON'BLE MRS. JUSTICE SABINA

Present: Mr. J.S.Hooda, Advocate,
for the petitioner

SABINA, J.

Respondents were tried for an offence under Sections 363,366, 376, 120-B, 506 of the Indian Penal code(hereinafter referred to as 'IPC') in FIR No. 74 dated 5.3.2006 under Sections 363,366, 376, 120-B, 506 IPC registered at Police Station Kotwali, Faridabad. Additional Sessions Judge (Ad hoc), Faridabad vide judgment dated 20.8.2007 acquitted the respondents of the charge framed against them. Aggrieved by the same complaint/petitioner has filed the present revision petition.

Prosecution story as noticed by the trial court in para 2 of its judgment is as under:-

"Brief facts of the case are that on 3.1.2006 victim, complainant instituted a criminal complaint under Sections 363.366. 376. 120-B, 506 IPC against Vinod Singla and others accused. The criminal complaint dated 2.1.2006 is Ex. P-8. In Crl. Revision No. 1333 of 2008 {2} criminal complaint victim inter alia stated that she is unmarried girl aged about 18 years residing with her parent. Vinod Singla accused

No. 1 is son of Ram Gopal, accused No. 2 residing at Chawla Colony and at Bahadurgarh. Mukesh accuse No. 3 is friend of accused No. 1 Smt. Sushma accused No. 4 is wife of Mukesh accused No. 3. On 20.8.2005, Smt. Sushma made a telephonic call to her at her residence and told that Vinod Singla wanted to meet her. She told Smt. Sushma that she is going to Subham Tower, Neelam Chowk, Faridabad at about 11-00 a.m. There the concerned official was not present at that time. Victim reached Subham Tower, Neelam Chowk, Faridabad . At about 11-00 a.m. And on enquiry came to know that interview has been postponed and the intimation regarding the same would be sent to her. She left Subham tower at about 11.15 A.M. When she reached Neelam Chowk she found Mukesh and Smt. Sushma standing on the road. Smt. Sushma told her that father of Vinod Singla is seriously ill and she should see father of Vinod Singla. She refused to accompany Vinod Singla, Mukesh and Smt. Sushma but all of them forcibly picked up her in a three wheeler under pressure and threat of death. Mukesh had shown a knife to her and had asked her to sit in three wheeler silently otherwise she would be killed. She was taken to their house of 20.8.2005 where they offered her water and tea with intoxicants. Due to intoxicants she became unconscious. When she regained consciousness she found herself to be in naked condition. Vinod Singla CrI. Revision No. 1333 of 2008 {3} Mukesh and Sushma were present. The accused threatened her that if she refused to solemnize the marriage with Vinod Singla then she would be put to death. Vinod Singla threatened her that she would have to live with him as his wife Vinod Singla committed rape on her. He had shown her knife. Accused had conspired and had kidnapped her forcibly at the point of knife. They had forced her to solemnize marriage with Vinod Singla. Accused persons had committed rape on her after giving her intoxicating substance in tea. At the time of alleged rape she was aged 17 years and was minor. She had told entire incident to her parents who along with her went to Police Station Kotwali, Faridabad. Police Station City Ballabgarh and requested for action but officials of police station neither lodged any report nor took any action. She had become major on 26.8.2005. On 20.9.2005, she had appeared before Superintendent of Police Faridabad and submitted complaint through diary No. 6364-P which was forwarded to SHO Police Station Saran. On 6.12.2005 she had sent complaint to IGP , Gurgaon but of no use. She had sent copies of complaint dated 6.2.2005 to National Commission for women and National Human Rights Commission, New Delhi but of no avail. Vinod Singla filed a false suit for permanent injunction and a false criminal complaint against her at Bahadurgarh. She had filed petition under Section 12(1) (a) and (c) Section 5 (iii) of Hindu Marriage Act, 1955 for annulment of marriage dated 14.2.2005. On 30.12.2005 accused came to her house along with three CrI. Revision No. 1333 of 2008 {4} unknown persons and tried to kidnap her. Hence, the criminal complaint."

Learned counsel for the petitioner has submitted that the trial court had erred in acquitting the respondents of the charge framed against them. Petitioner had been coerced into marriage with respondent No. 1 Vinod Singla. She had filed a petition for annulment of the marriage. Petitioner was only 17 years old at the time of marriage.

Learned trial court after going through the evidence on record held that there was unexplained delay of four months in lodging the FIR and the same was fatal to the prosecution case.

In the present case occurrence had taken place on 20.8.2005. Complainant was recovered from the house of Vinod Singla on 22.8.2005. complainant filed a petition under Section 12 of the Hindu Marriage Act seeking annulment of the marriage. Learned counsel for the petitioner during the course of arguments has submitted that the complaint was filed by the petitioner on 2.1.2006 and on the basis of the same formal FIR was registered. Thus, there is an unexplained delay of four months in lodging the FIR and the same is fatal to the prosecution case in the circumstances of the present case.

It has been held by Apex Court in Satyajit Banerjee vs. State of West Bengal (ST), 2004 (10) JT 27 that direction for de novo trial could be given in extraordinary case where Court was convinced that entire trial was farce. Revisional jurisdiction against the order of acquittal at the instance of the complainant, has to be exercised by the High Court only in very exceptional cases where the High Court finds defect or procedure or Crl. Revision No. 1333 of 2008 {5} manifest error of law resulting in flagrant miscarriage of justice.

In these circumstances, the learned trial court has rightly held that the prosecution had failed to prove its case against the respondents. The present case does not warrant retrial. As per Section 401(3) of the Code of Criminal Procedure, a finding of acquittal cannot be converted into a finding of conviction by this Court. The impugned judgment of the trial court, thus, calls for no interference as the reasons given the trial court for acquittal of the respondents are sound reasons.

Petition is dismissed accordingly.

(SABINA) JUDGE February 20, 2009 PARAMJIT